



POLICE DEPARTMENT

March 21, 2018

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2016-16224
Police Officer Sandra Rodriguez	:	
Tax Registry No. 929072	:	
19 th Precinct	:	

-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Samuel Yee, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Michael Martinez, Esq.
Worth, Longworth & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

CHARGES AND SPECIFICATIONS

1. Said Police Officer Sandra Rodriguez, while on duty and assigned to the 19th Precinct, on or about June 14, 2016, while on duty, was discourteous to Lieutenant Leonard Holguin when said Police Officer was being questioned about her absence from Roll Call.
P.G. 203-09, Page 1, Paragraph 2 PUBLIC CONTACT - GENERAL
GENERAL REGULATIONS
2. Said Police Officer Sandra Rodriguez, while on duty and assigned to the 19th Precinct, on or about June 16, 2016, was discourteous to Lieutenant Leonard Holguin when he was speaking with said Police Officer at her post.
P.G. 203-09, Page 1, Paragraph 2 PUBLIC CONTACT - GENERAL
GENERAL REGULATIONS
3. Said Police Officer Sandra Rodriguez, while on duty and assigned to the 19th Precinct, on or about November 22, 2016, after having been directed by Sergeant Timothy Slattery to report to her post, wrongfully failed to comply with said direction.
P.G. 203-03, Page 1, Paragraph 2 COMPLIANCE WITH ORDERS
GENERAL REGULATIONS
4. Said Police Officer Sandra Rodriguez, while on duty and assigned to the 19th Precinct, on or about November 22, 2016, was discourteous to Sergeant Timothy Slattery in that, when responding to said Sergeant's direction to report back to her post, she acted in a discourteous manner towards said Sergeant.
P.G. 203-09, Page 1, Paragraph 2 PUBLIC CONTACT - GENERAL
GENERAL REGULATIONS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on February 27, 2018. Respondent, through her counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review. After considering the evidence, and reviewing the post-trial submissions of Respondent's counsel, I find that some mitigation is warranted, and recommend that Respondent forfeit ten (10) vacation days.

ANALYSIS

This mitigation hearing involves Respondent's discourtesy toward two supervisors on separate occasions. The first two specifications concern her interaction with Lieutenant Leonard Holguin on June 14 and 16, 2016, while the latter two specifications relate to Sergeant Timothy Slattery on November 22, 2016.

Respondent testified that at the time of the first incident, she had been assigned to midnight tours within the 19th Precinct for 15 years. For the past 10 years, Respondent has been assigned a fixed security post at the Israeli diplomatic residence in Manhattan. Respondent explained that working the midnight tour allowed her to take care of [REDACTED] during the day. (Tr. 21-22, 34, 47)

As part of this fixed post assignment, Respondent normally does not have to report to roll call, since she needs to meet personally with the officer she is relieving on the post. Respondent checks in at the precinct shortly before her tour in order to make sure her assignment has not changed, and then goes out to her post. Respondent testified that when she reported for her shift on June 14, 2016, her first day back from vacation, Sergeant Farina informed her that she might be getting a different assignment that night, and so she should appear at roll call and await further instructions. (Tr. 23-26)

On the way to her locker, Respondent discovered that her access was hindered by construction going on in the stationhouse. She called down to the sergeant to let him know she might be delayed to roll call. According to Respondent, the sergeant told her that it wasn't a problem, and that her assignment that tour was going to be bridge patrol. (Tr. 27-29, 47)

By the time Respondent was able to make her way to her locker and change, roll call already was underway. Respondent testified that she felt it would be disrespectful to enter roll call in the middle, and so she instead went down to the radio room to find a battery for her radio.

One or two minutes later, Lieutenant Holguin, who conducted the roll call, appeared and questioned Respondent regarding her absence. Respondent did not acknowledge his presence, and continued to focus her attention on finding a battery. After the lieutenant asked her about missing roll call a second time, Respondent abruptly said there was construction in the building, and walked past the lieutenant and out of the radio room, without waiting to be dismissed. At trial, Respondent acknowledged that she should have faced the lieutenant when he was speaking with her and given him her attention. (Tr. 29-31, 49-52)

On June 16, Respondent was back at her regular fixed post. Lieutenant Holguin drove up to sign her activity log. He informed Respondent that he didn't like how she handled herself during their previous interaction, and he was transferring her to day tours. Respondent testified that this change had a significant impact on her life since it affected her ability to care for [REDACTED] during the day. She was upset, and walked away from the lieutenant before he was done speaking with her. Respondent later spoke with the precinct's integrity control officer, who confirmed that because of her disrespect, she would be assigned to day tours for three months. (Tr. 32-36, 53-54)

Respondent also testified that on November 22, 2016, she was scheduled to take a defensive driving course at 1200 hours at the 19th precinct stationhouse. She first checked with Lieutenant Simon since the course was during her tour, then paid the \$50 fee and signed up. Respondent also mentioned to the lieutenant that she needed to input some accident reports on the computer, so the lieutenant told her she could leave her post a few minutes early to take care of that before the training. (Tr. 36-41)

Respondent arrived at about 1145 hours, checked in with Sergeant Slattery, the desk officer, and went to the 124 room to use the computer. According to Respondent, the computer was not working. Respondent was talking with her friend, SPAA Brown, when Sergeant Slattery

entered the room and asked if she had finished entering her reports on the computer. Respondent answered that she had not, and the sergeant ordered her back to her post. She went upstairs to retrieve her gun belt, then returned to the 124 room instead of going straight to her post. Respondent testified that she did so in order to retrieve her reports, but acknowledged that she should have gone directly to her post instead. (Tr. 42-44, 55-57, 63)

While she was back inside the 124 room, Sergeant Slattery returned and reminded Respondent that he had told her to go back to her post. Respondent, who was confused by the sergeant's order since she had permission to be there, admitted she was rude toward the sergeant and "gave him like I would say an attitude." She did not verbally acknowledge the sergeant's order. Respondent testified that she may also have rolled her eyes and muttered comments under her breath. Respondent did not try to explain that she was there for the driving class. Instead, Respondent returned to her post. She missed the training, but later retrieved her deposit. Respondent testified that as a result of this incident, her time doing day tours was extended, and she did a total of nine months of day tours before returning to her regular midnight post. (Tr. 44-46, 58-59, 65)

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on July 1, 2001. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Cases of discourtesy that appear before this tribunal typically involve more affirmative displays of disrespect than what occurred here. These were not situations where Respondent was verbally abusive toward her supervisors, or cursed or threatened them. Rather, the discourtesy in these matters stemmed more from failure to communicate.

The first example of this failure to communicate occurred during Respondent's encounter with Lieutenant Holguin after roll call. Rather than look at the lieutenant as he was speaking to her, and explain to him how the precinct renovations prevented her from appearing at roll call in a timely manner, Respondent chose not to acknowledge the lieutenant's question and instead continued to focus on finding a battery. Lieutenant Holguin had to ask her a second time about roll call before Respondent said something about construction, but fell far short of offering a complete explanation. Respondent then made matters worse by walking away from the lieutenant before he was done addressing her.

Similarly, when Lieutenant Holguin informed Respondent about her tour change on June 16, Respondent made no effort to clarify the earlier events, or explain to the lieutenant the hardship that would accompany a tour change. Instead, she again rudely walked away from the lieutenant before he was done speaking with her.

Five months later, Respondent experienced similar difficulties in her interaction with Sergeant Slattery. Rather than explain to the sergeant that she was having difficulties with the computer, she instead walked away to get her gun belt. When she returned to the 124 room and was again instructed by the sergeant to return to her post, Respondent did not explain that she needed to retrieve her paperwork. Respondent testified that she was confused about the sergeant's order to return to her post, but made no attempt to explain that she had received approval from a lieutenant to attend the driver training. Instead, she was rude toward the sergeant and openly exhibited a poor attitude in response to his order.

In recommending a penalty of 15 vacation days, the Advocate correctly points out that it is troubling how Respondent had discourtesy issues with two different supervisors on separate dates. To be sure, any discourtesy toward a supervisor is unacceptable, and there was no excuse for Respondent's behavior toward the lieutenant and sergeant in these matters. However, as

noted above, neither incident involved the more affirmative type of discourtesy that traditionally warrants the forfeiture of 15 days. For instance, in *Disciplinary Case No. 8102/12* (May 22, 2014), cited by the Advocate, a seven-year officer negotiated a penalty of 15 vacation days for speaking back to a sergeant and then walking away from him. But in that case, the officer also raised her voice, pointed her finger, and spoke in an accusatory fashion to another individual, conduct more serious than was present here. In the other cases cited by the Advocate, the penalty was the loss of 10 vacation days for single instances of discourtesy.

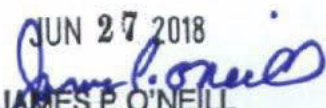
Additionally, this tribunal is mindful that following the first incident, Respondent had her tour changed from midnights to days. That tour change was extended after the incident with Sergeant Slattery. Respondent explained how nine months on the day tour was a hardship for her, particularly with respect to her ability to look after [REDACTED]

Further, Respondent, who is assigned to an important diplomatic security post, also has a strong record with the Department, with no disciplinary history. A packet of material submitted by her counsel reveals strong evaluations, including a positive assessment of her performance during the time period where she was switched to day tours.

Accordingly, some mitigation is appropriate here. This tribunal makes this recommendation with the expectation that Respondent will learn from these incidents the importance of better communication with her supervisors. Taking into account the totality of circumstances, I recommend that Respondent forfeit ten (10) vacation days.

Respectfully submitted,

APPROVED

JUN 27 2018

JAMES P. O'NEILL
POLICE COMMISSIONER



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

JUN 28 2018
JAMES R. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER SANDRA RODRIGUEZ
TAX REGISTRY NO. 929072
DISCIPLINARY CASE NO. 2016-16224

Respondent was appointed to the Department on July 1, 2001.

On her last three annual performance evaluations, Respondent received an overall rating of 3.5 "Highly Competent/Competent" in 2016, and two overall ratings of 3.0 "Competent" in 2015 and 2014.

[REDACTED]

On December 8, 2017, Respondent was placed on [REDACTED]

Respondent has no disciplinary record.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials